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CASE #	CASE NAME	HEARING NAME
CVME2501792	GABA VS FORD MOTOR COMPANY	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Motion is granted. Plaintiff awarded attorney's fees in the reasonable amount of \$16,285 and costs in the amount of \$1,015.99. Case is ordered dismissed upon entry of the order.

Complaint & Allegations. This is a Song-Beverly action. On June 20, 2022, Plaintiff Anthony Gaba purchased a 2022 Ford Bronco Sport (the "Vehicle") sold with express warranties. Plaintiff presented the Vehicle on multiple occasions to Defendant Ford Motor Company's (or "Ford") authorized repair facilities for repair. The Complaint, filed February 7, 2025, alleges causes of action for:

Violation of Song-Beverly Act – Breach of Express Warranty

Violation of Song-Beverly Act – Breach of Implied Warranty

Violation of the Song-Beverly Act, Civil Code section 1793.2(b)

Violation of Civil Code section 1796.5

Notice of Settlement. On January 16, 2026, Plaintiff filed a notice of conditional settlement of entire case. Plaintiffs accepted Ford's 998 Offer (the "Offer") on August 20, 2025, which provided for Plaintiff's attorneys fees, expenses, and costs.

Motion. Plaintiff now moves for an award of attorneys' fees in the amount of \$17,562.50, costs in the amount of \$1,015.99, and a lodestar enhancement of \$5,268.75 for a total of \$23,847.24. Plaintiff argues that as the prevailing party, he is entitled to the claimed fees and costs because they are reasonable and provided for by the Settlement Agreement.

In opposition, Ford argues the amount requested is "unconscionable" because the instant case was not novel or difficult nor did it require complex litigation. Ford argues the hourly rates are excessive, and the case does not warrant a lodestar multiplier.

Standard of Law - Under Civil Code section 1794, subdivision (d), "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." The federal Magnuson-Moss Warranty Act contains a similar fee-shifting provision. (15 U.S.C. § 2310, subd. (d)(2).)

Lodestar - The parties do not dispute that Plaintiff is entitled to reasonable attorney fees and costs. The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller.) (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

Plaintiff claims the following:

Staff	Hourly Rate	Hours	TOTAL
Anthony Greco (AG), Esq.	\$595	15.5	\$9,222.50
Christopher Urner (CU), Managing Attorney	\$525	8.2	\$4,305.00
Vazgen Pogosyan (VP), Esq.	\$450	3.2	\$1,440.00
Jorge L. Acosta (JLA) - partner	\$450	1.0	\$450.00
Jorge L. Acosta, Esq.	\$350	2.7	\$945.00
DA/JI/CS (law clerks/paralegals)	\$250	4.8	\$1,200.00
TOTAL			\$17,562.50

Reasonable Hourly Rate -The hourly rates do not appear to be reasonable for Riverside County. Plaintiff provides no evidence that he could not secure a local attorney and as such, the out-of-town attorney's home market rate should not be applied. (*Caldera v. Department of Corrections & Rehabilitation* (2020) 48 Cal.App.5th 601, 609.) A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

The Court will award as follows:

Staff	Hourly Rate	Hours	TOTAL
Anthony Greco (AG), Esq.	\$550	15.5	\$8525
Christopher Urner (CU), Esq.	\$525	8.2	\$4305
Vazgen Pogosyan (VP), Esq.	\$450	3.2	\$1440
Jorge L. Acosta (JLA) - partner	\$350	1.0	\$350
Jorge L. Acosta, Esq.	\$350	2.7	\$945.00
DA/JI/CS (law clerks/paralegals)	\$150	4.8	\$720.00
TOTAL			\$16,285

Multiplier -The purpose of a fee enhancement is "primarily to compensate the attorney for prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) "Fair market value" typically includes a premium for the risk of nonpayment or delay in payment of attorney fees. (*Id.* at 1138.)

"The court then has the power and the duty to enhance, or to reduce, the lodestar through the use of multipliers, by taking into consideration factors such as the novelty and complexity of the issues, the skill and expertise of counsel, the extent that the litigation

precluded other employment and the contingent nature (or risk) of nonrecovery.” (*Robbins v. Alibrandi* (2005) 127 Cal.App.4th 438, 448.) Contrary to Plaintiffs’ contention, this case is not novel or complex. It is a routine lemon law case. While counsel has extensive lemon law experience which may have contributed to the outcome, that experience is reflected in the high hourly rates, and further enhancement is not necessary. Although counsel worked on a contingency basis, because attorney’s fees are mandatory under the Song Beverly Act, the risk that counsel would not recover for hours incurred was relatively low.

Plaintiff filed a memorandum of costs on May 20, 2026. Ford does not dispute costs. As such, the Court awards costs in the amount of \$1,015.99.

The Court should award the Plaintiffs as follows: \$12,825 in attorney’s fees and \$1,015.99 in costs for a total of \$13,840.00